



House of Representatives

General Assembly

File No. 632

February Session, 2026

House Bill No. 5542

House of Representatives, April 14, 2026

The Committee on Judiciary reported through REP. STAFSTROM of the 129th Dist., Chairperson of the Committee on the part of the House, that the bill ought to pass.

AN ACT CONCERNING CRIMINAL AND SIMPLE TRESPASS ON SCHOOL GROUNDS OR IN SCHOOL BUILDINGS.

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Section 53a-107 of the general statutes is repealed and the
2 following is substituted in lieu thereof (*Effective October 1, 2026*):

3 (a) A person is guilty of criminal trespass in the first degree when: (1)
4 Knowing that such person is not licensed or privileged to do so, such
5 person enters or remains in a building or any other premises after an
6 order to leave or not to enter personally communicated to such person
7 by the owner of the premises or other authorized person; or (2) such
8 person enters or remains in a building or any other premises in violation
9 of a restraining order issued pursuant to section 46b-15 or a protective
10 order issued pursuant to section 46b-16a, 46b-38c, 54-1k or 54-82r by the
11 Superior Court; or (3) such person enters or remains in a building or any
12 other premises in violation of a foreign order of protection, as defined
13 in section 46b-15a, that has been issued against such person in a case
14 involving the use, attempted use or threatened use of physical force

15 against another person; or (4) knowing that such person is not licensed
16 or privileged to do so, such person enters or remains on public land,
17 including on school grounds and any parking lot or athletic field or in
18 any school building on such grounds, after an order to leave or not to
19 enter personally communicated to such person by an authorized official
20 of the state, [or] a municipality or a local or regional board of education,
21 as the case may be.

22 (b) Criminal trespass in the first degree is a class A misdemeanor.

23 Sec. 2. Section 53a-108 of the general statutes is repealed and the
24 following is substituted in lieu thereof (*Effective October 1, 2026*):

25 (a) A person is guilty of criminal trespass in the second degree when,
26 knowing that such person is not licensed or privileged to do so, (1) such
27 person enters or remains in a building, including a school building, or
28 (2) such person enters or remains on public land, including on school
29 grounds and any parking lot or athletic field on such grounds.

30 (b) Criminal trespass in the second degree is a class B misdemeanor.

31 Sec. 3. Section 53a-109 of the general statutes is repealed and the
32 following is substituted in lieu thereof (*Effective October 1, 2026*):

33 (a) A person is guilty of criminal trespass in the third degree when,
34 knowing that such person is not licensed or privileged to do so: (1) Such
35 person enters or remains in premises which are posted in a manner
36 prescribed by law or reasonably likely to come to the attention of
37 intruders or are fenced or otherwise enclosed in a manner designed to
38 exclude intruders, or which belong to the state and are appurtenant to
39 any state institution, including a state-operated school building or on
40 such school grounds and any parking lot or athletic field on such school
41 grounds; or (2) such person enters or remains in any premises for the
42 purpose of hunting, trapping or fishing; or (3) such person enters or
43 remains on public land, including on school grounds and any parking
44 lot or athletic field or in any school building on such grounds, which is
45 posted in a manner prescribed by law or reasonably likely to come to

46 the attention of intruders or is fenced or otherwise enclosed in a manner
47 designed to exclude intruders.

48 (b) Criminal trespass in the third degree is a class C misdemeanor,
49 except that any person found guilty under subdivision (2) of subsection
50 (a) of this section shall be guilty of a class B misdemeanor and fined not
51 less than five hundred nor more than one thousand dollars.

52 Sec. 4. Section 53a-110a of the general statutes is repealed and the
53 following is substituted in lieu thereof (*Effective October 1, 2026*):

54 (a) A person is guilty of simple trespass when, knowing that such
55 person is not licensed or privileged to do so, such person enters or
56 remains in or on any premises without intent to harm any property,
57 including on school grounds and any parking lot or athletic field or in
58 any school building on such grounds.

59 (b) Simple trespass is an infraction.

This act shall take effect as follows and shall amend the following sections:

Section 1	<i>October 1, 2026</i>	53a-107
Sec. 2	<i>October 1, 2026</i>	53a-108
Sec. 3	<i>October 1, 2026</i>	53a-109
Sec. 4	<i>October 1, 2026</i>	53a-110a

JUD *Joint Favorable*

The following Fiscal Impact Statement and Bill Analysis are prepared for the benefit of the members of the General Assembly, solely for purposes of information, summarization and explanation and do not represent the intent of the General Assembly or either chamber thereof for any purpose. In general, fiscal impacts are based upon a variety of informational sources, including the analyst's professional knowledge. Whenever applicable, agency data is consulted as part of the analysis, however final products do not necessarily reflect an assessment from any specific department.

OFA Fiscal Note**State Impact:** None**Municipal Impact:** None**Explanation**

The bill makes clarifying changes to the state's trespass statutes, resulting in no fiscal impact.

The Out Years**State Impact:** None**Municipal Impact:** None

OLR Bill Analysis**HB 5542*****AN ACT CONCERNING CRIMINAL AND SIMPLE TRESPASS ON SCHOOL GROUNDS OR IN SCHOOL BUILDINGS.*****SUMMARY**

This bill specifies that when a person commits 1st, 2nd, or 3rd degree or simple trespass on any premises, building, public land, or state institution, these locations include school grounds and any parking lot, athletic field, or school building on the grounds.

Under the law, one form of 1st degree trespass happens when a person, without license or privilege, enters or remains on public land after an order to not do so from an authorized state or municipal official. The bill explicitly states that an authorized official of a local or regional board of education could also have (1) ordered the person not to enter or (2) ordered the person to leave, for the purpose of determining whether the person committed 1st degree trespass.

By law, 1st, 2nd, and 3rd degree trespass are misdemeanor crimes and simple trespass is an infraction (violations are paid or resolved through the judicial branch's Centralized Infractions Bureau).

EFFECTIVE DATE: October 1, 2026

COMMITTEE ACTION

Judiciary Committee

Joint Favorable

Yea 41 Nay 0 (03/30/2026)